

ORDER SHEET
IN THE LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

Crl. Misc. No.1735-B/2020

Raja Falak Javed

VS.

The State and another.

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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01.10.2020	Mr. Asad Mehmood Qureshi, Advocate for the petitioner. Mr. Javed Iqbal Mangral, Advocate for complainant/respondent No.2. Mr. Naveed Ahmad Warraich, Deputy District Public Prosecutor with Qayyum ASI.
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Through this petition under section 497 Cr.P.C., the petitioner, namely Falak Javed seeks post-arrest bail in case FIR No.467 of 2020 dated 01.06.2020 registered at police station Police Station Saddar Wah Cantt., District Rawalpindi, in respect of an offence under section 376 PPC.

2. The allegation against the petitioner, as culled from the evidentiary material available before the Court, is that he raped Mahnoor, the complainant of the FIR.

3. I have heard the learned counsels for the parties, the learned Deputy District Public Prosecutor and perused the record with their able assistance.

4. As is evident from the perusal of the record, the petitioner is named in the FIR. The matter was reported to the police by the victim namely Mahnoor with reasonable promptitude. The occurrence in the case had taken place on 31.05.2020 at 7.00 p.m. whereas the FIR was registered on 01.06.2020 at 5.00 a.m. This immediate and spontaneous reporting of the matter by the prosecutrix rules out any chance of false involvement of the petitioner or manipulation of the narrative of the FIR. Furthermore, Mahnoor, the complainant of the FIR, was examined by the Medical Officer posted at THQ

Taxila on 01.06.2020 at 6.25 a.m. and after examination the Medical Officer issued the medico legal examination certificate, a copy of which is available on record. A perusal of the said medico legal examination certificate reveals that the Medical Officer at the time of examination of Mahnoor, the complainant of the FIR, recorded the history of the occurrence as provided by her who stated that it was the petitioner namely Raja Falak Javed, who had raped her in his car. Furthermore, the Medical Officer observed blood spots on the trouser worn by Mahnoor, the complainant of the FIR, at the time of her examination. The Medical Officer also observed **fresh rupture of hymen** of Mahnoor, the complainant of the FIR. In this manner the medical evidence available on record clearly supports the narrative of the FIR. It was indeed a dastardly crime which had been committed by the petitioner and sufficient evidence is available on record to support the allegation against him. The learned counsel for the petitioner has submitted that Mahnoor, the complainant of the FIR, had of her own, accompanied the petitioner prior to the occurrence, hence the offence of rape was not made out. Suffice is to observe that even if Mahnoor, the complainant of the FIR, had of her own accompanied the petitioner still she never had agreed to be raped. Mahnoor, the complainant of the FIR, in her statement has clearly stated that the petitioner had sexual intercourse with her against her will and without her consent. It could be that Mahnoor, the complainant of the FIR, had consented to travel and shop with the petitioner but she had never consented to have sexual intercourse with the petitioner. Section 375 PPC. defines “*rape*” as under:-

375. Rape:-

A man is said to commit rape who has sexual intercourse with a woman under circumstances falling under any of the five following descriptions,

- (i) against her will.*
- (ii) without her consent*
- (iii) with her consent, when the consent has been obtained by putting her in fear of death or of hurt,*

(iv) *with her consent, when the man knows that he is not married to her and that the consent is given because she believes that the man is another person to whom she is or believes herself to be married; or*

(v) *With or without her consent when she is under sixteen years of age.*

Explanation: Penetration is sufficient to constitute the sexual intercourse necessary to the offence of rape.

The evidentiary material available on the record, *prima facie*, proves that the petitioner namely Raja Falak Javed had sexual intercourse with Mahnoor, the complainant of the FIR, against her will and without her consent. The learned counsel for the petitioner could not point out towards any enmity of the young victim which could have influenced the victim to falsely involve the petitioner in the occurrence. In view of this overwhelming evidence available against the petitioner, reasonable grounds exist for believing that the petitioner has committed the offence complained of. The offence being heinous in nature, there existing evidence pointing towards the guilt of the petitioner and the learned counsel for the petitioner unable to point out any material necessitating further inquiry and probe into the allegations against the petitioner, this petition is of no worth.

5. In view of the above discussion, this petition being meritless is dismissed. Learned Deputy Prosecutor General has pointed out that the report under section 173 Cr.P.C has been submitted. In view of this, a direction is issued to the learned trial court to conclude the trial of the case expeditiously, preferably within a period of **four** months from the receipt of copy of this order.

(SADIQ MAHMUD KHURRAM)
JUDGE

Approved for reporting.

JUDGE